

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

UNITED STATES OF AMERICA,

-v-

GHISLAINE MAXWELL,

Defendant.

20 Cr. 330 (PAE)

ORDER

PAUL A. ENGELMAYER, District Judge:

On August 11, 2025, the Court denied a motion by the Government to unseal grand jury transcripts and exhibits in this case. The Court found that unsealing was not authorized by either Federal Rule of Criminal Procedure 6(e) or the special circumstances doctrine applicable in this Circuit. *See United States v. Maxwell*, No. 20 Cr. 330 (PAE), 2025 WL 2301281, at *8–9, 16 (S.D.N.Y. Aug. 11, 2025); Dkt. 809.

Today, the Government filed a new motion to unseal the grand jury transcripts and exhibits. Dkt. 810.¹ It argues that the Epstein Files Transparency Act, H.R. 4405 (the “Act”), enacted November 19, 2025, authorizes such disclosures, subject to redactions to protect victims’ personal identifying information. The Government also seeks a corresponding modification of the protective order in this case. The Government asks the Court to rule on an expedited basis.

The Court, mindful of the Act’s requirement that the Attorney General disclose responsive materials within 30 days of its enactment, sets the following schedule for responses to the Government’s motion:

¹ The Government has filed a substantially parallel motion in *United States v. Epstein*, No. 19 Cr. 490 (RMB) (S.D.N.Y. Nov. 24, 2025), at Dkt. 85.

1. ***Submission from Maxwell:*** By **December 3, 2025**, defendant Ghislaine Maxwell will file a letter setting out her position on the Government's proposed disclosures and modification of the protective order.
2. ***Submissions from victims:*** As with its earlier motion to unseal, the Government's motion is silent as to the rights of victims of Maxwell and/or Jeffrey Epstein to be heard, pursuant to the Crime Victims' Rights Act, 18 U.S.C. § 3771. The Court directs the Government forthwith to provide notice of its motion to all such victims. To the extent victim(s) wish to be heard, directly or through counsel, with respect to the Government's proposed disclosures and modification of the protective order, letters setting out victims' perspectives are due **December 3, 2025**. They are to be emailed to the SDNY Victim and Witness Coordinator at USANYS.EpsteinMaxwellVictims@usdoj.gov. By **December 4, 2025**, the Government is to email these to the Court at EngelmayerNYSDChambers@nysd.uscourts.gov.
3. By **December 10, 2025**, the Government will file any response to the above submissions.

The Court expects to rule promptly thereafter on the motion.

SO ORDERED.



PAUL A. ENGELMAYER
United States District Judge

Dated: November 24, 2025
New York, New York